

## SYNTHETIC SUPPLIER AGREEMENT - TEST FIXTURE

### 1. Liability

Supplier liability is capped at USD 100 in aggregate, including data breaches and confidentiality breaches.

### 2. Indemnification

The Company shall indemnify Supplier against all third-party claims, including claims caused by Supplier negligence. Supplier has no duty to defend intellectual property infringement claims.

### 3. Termination

The Company may terminate for convenience only on 90 days notice and must pay an early termination fee equal to all remaining contract fees.

### 4. Confidentiality

Supplier shall keep Company confidential information secret during the agreement and for one year after termination.

5. Payment

The Company shall pay each invoice within 10 days after receipt. Late amounts accrue interest at 3 percent per month. The Company may not withhold disputed amounts.

6. Data Protection

Supplier shall notify the Company within 7 days of discovering a personal data breach. Supplier shall delete Company personal data within 60 days after termination. Supplier shall implement appropriate security measures.

7. Intellectual Property

Supplier owns all bespoke deliverables. The Company receives a revocable license to use deliverables only during the agreement.

8. Reporting

Supplier shall deliver a monthly service report to the Company by the fifth day of each month.